

		fair market value provided to the court pursuant to Code of Civil Procedure § 874.316(b). (Kimball Decl., ¶ 3.) That process has been completed resulting in a determination of the fair market value of the Property at \$41,770,000. (Kimball Decl., ¶¶ 4-9, Exs. B-D.) Defendants do not oppose Plaintiffs’ motion to set value. However, Defendants contend Plaintiffs’ Motion fails to mention that the real property subject to the motion is under a line of credit loan with an original commitment of \$836,160. Accordingly, Defendants contend the purchase price stated in the Court’s notice under Code of Civil Procedure section 874.317, subdivisions (b) and (c), should be calculated as follows: the Court-determined value (per Plaintiffs’ motion) minus the outstanding loan balance as of the payment due date set under section 874.317, subdivision (e), with that result then multiplied by Plaintiffs’ 25.0005% interest in the property. The parties are to come prepared to the hearing to discuss the calculation of the purchase price taking into account the lien of credit. Plaintiffs to give notice.
7.	HOME OF THE MINISTERING ANGEL VS. SENECA FAMILY OF AGENCIES 2025-01498434	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES 2. MOTION TO COMPEL PRODUCTION 3. MOTION TO COMPEL RESPONSE TO REQUESTS FOR ADMISSIONS The hearing on the motions of Defendant Seneca Family of Agencies to compel further responses to the first sets of form interrogatories, requests for admission, and requests for production and to impose monetary sanctions against Plaintiff Home of the Ministering Angel is CONTINUED to 9/22/26 at 9:00 a.m., in Dept. C32. In the joint status report filed by counsel for both sides on 7/27/26 (ROA 221), counsel has represented that they have been meeting and conferring telephonically but that not all issues have been resolved. However, counsel for Plaintiff has indicated that, in late July 2026, Plaintiff served second supplemental responses to the sets of discovery and produced 90 pages of responsive documents. Plaintiff’s counsel states that there are ways to address Defendant’s concern that the current representative of Plaintiff is not competent to execute the verifications, but Plaintiff’s counsel states that they could not have been carried out before the continued hearing date. The Court therefore continues the hearing to permit counsel to further meet and confer and submit another joint status report at

least nine days before the continued hearing date that is no longer than five pages long.

4. MOTION TO EXPUNGE LIS PENDENS

Before the court is Defendant Seneca Family of Agencies' request for attorney fees and costs associated with its Motion to Expunge Lis Pendens, which the court previously granted on 6/9/26. (ROA 197.)

Seneca originally requested attorney fees in the amount of \$159,207.63. (ROA 143.) The court previously ruled the request was unreasonable in amount because the tasks associated with the fee request were not limited to making the motion. The court continued the hearing and ordered Seneca to file a supplemental declaration and billing statements for tasks associated with conducting legal research, preparing the motion, reviewing the opposition, preparing the reply, and attending the hearing. (ROA 197.)

Seneca has amended its request and now seeks \$86,077.50 in fees and \$1,320 in costs. (Suppl. Averett Decl., ¶¶ 3, 5.) The fees represent 80.6 hours of attorney time as follows: (1) 0.2 hours by Margaret A. Fennessey at \$375 per hour; (2) 26.5 hours by Elliott Averett at \$675 per hour; (3) 13.5 hours by Brandon Matthew Wilens at \$770 per hour; (4) 7.2 hours by Anne Redcross Beehler at \$1,100 per hour; (5) 33.2 by David A. Robinson at \$1,500 per hour. (Id., ¶¶ 3-4, Ex. B.)

The court has considered the parties' supplemental briefs and rules as follows:

While the court is required to award attorney fees to the prevailing party after motion to expunge lis pendens, the court is only required to award reasonable attorney fees. (Code Civ. Proc., § 405.38.) The court finds that Seneca's claim for 80.6 hours of time billed primarily by four attorneys for total attorney fees of \$86,077.50 is excessive. Robinson, who bills at the highest rate, accounts for 41% of the total hours billed for the motion. This is unreasonable. The motion to expunge was not so complicated as to warrant the highest billing attorney spending a significant amount of time researching, rewriting and finalizing the motion, plus other related tasks. It also does not warrant four attorneys working on the motion. Four attorneys preparing one motion, a reply and appearing at the hearing show the matter was overstaffed, inefficient and duplicative. Accordingly, the court reduces Robinson and Averett's hours by 10.

The court finds the hourly rates of Robinson and Beehler are excessive and reduced to \$770.

Based on the foregoing, Robinson's hours are reduced to 23.2 and fees awarded in the amount of \$17,864 (23.2 hours x \$770). Averett's hours are reduced to 16.5 and fees awarded in the amount

		of \$11,137.50 (16.5 hours x \$675). Beehler’s fees are awarded in the amount of \$5,544 (7.2 hours x \$770). Wilens’ fees are awarded in the amount of \$10,395 (13.5 hours x \$770). Fennessey’s fees are awarded in the amount of \$75 (0.2 hours x \$375). Accordingly, the court awards a total of \$45,015.50 in attorney fees and \$1,320 in costs.
8.	SHANNON VS. BRIONES 2025-01503515	MOTION TO QUASH DISCOVERY SUBPOENA Plaintiff’s Motion to Quash Defendants’ Deposition Subpoena for Employment Records is DENIED in part and GRANTED in part. <u>Legal Standard</u> Code of Civil Procedure section 1987.1 provides, in part: “[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] . . . may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1, subds. (a)-(b).) When evaluating a privacy objection, the court applies the following framework: “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. . . . The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations.” (<i>Williams v. Superior Court</i> (2017) 3 Cal.5th 531, 552 [citations omitted]). Discovery should not be ordered “if the information sought is available from other sources or through less intrusive means.” (Weil & Brown, Cal. Prac. Guide: Civ. Pro. Before Trial (The Rutter Group 2025) Discovery, § 8:321 [citations omitted].) <u>Plaintiff’s Employment Records</u> At issue are three deposition subpoenas for the production of business records requesting Plaintiff’s employment records. (Mtn., Ex. 1.) The subpoenas request “[a]ny and all employment records, . . .” for Plaintiff. (Mtn., Ex. 1.)